

The U.P. State Electricity Consultative Council and Local Advisory Committees Rules, 1964

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State of Uttar Pradesh - Act

The U.P. State Electricity Consultative Council and Local Advisory Committees Rules, 1964

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The U.P. State Electricity Consultative Council and Local Advisory Committees Rules, 1964

Rule

THE-U-P-STATE-ELECTRICITY-CONSULTATIVE-COUNCIL-AND-LOCAL-ADVISORY-COMMITTEES-RULES-1964 of 1964

Published on 1 January 1964

Commenced on 1 January 1964

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The U.P. State Electricity Consultative Council and Local Advisory Committees Rules, 1964

Published vide U.P. Gazette, Part 1-A, dated December 26, 1964, Notification No. ES/78/2 (U.P.)-23-PB, dated December 15, 1964

In exercise of the powers under Section 78 of the Electricity (Supply) Act, 1948 (Act No. 54 of 1948), the Governor of Uttar Pradesh is pleased to make the above rules, the same having been previously published, as required by sub-section (1) of the said Section 78 of the said Act.

Part I

1.

Short title and commencement.

(1)

These rules may be called the "Uttar Pradesh State Electricity Consultative Council and Local Advisory Committees Rules, 1964."

(2)

They shall come into force on the date of their publication in the [Gazette]

[Published in U.P. Gazette, Part I-A, dated December 26, 1964, vide Notification No. ES/78/2 (U.P.)/XXIII-PB, dated December 15, 1964.]

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2.

Definitions.

- In these rules, unless there is anything repugnant in the subject or context-

(i)

"The Act" means the Electricity (Supply) Act, 1948 (Act No. 54 of 1948);

(ii)

"Council" means the State Electricity Consultative Council constituted under Section 16 of the Act;

(iii)

"Committee" means a Local Advisory Committee, constituted under Section 17 of the Act;

(iv)

"Government" means the Government of Uttar Pradesh;

(v)

"Government servant" means a person in the employ of Government; and

(vi)

Other expressions have the meanings respectively assigned to them in the Act or in the Indian Electricity Act, 1910 (Act No. IX of 1910) as the case may be.

Part II

3.

Term of office of members of the Council and Committees.

- Every member of the Council other than a member of the Board, and every member of a Committee, shall hold office for a period of three years, unless his appointment is terminated earlier by Government. On the expiration of the term of office of any member, Government may in its discretion reappoint him as such member.

4.

Secretary of the Council or Committee.

- (i) The Board may appoint from amongst its officers a Secretary for the Council and a Secretary for each Committee;

(ii)

The officers so appointed shall not be entitled to any extra remuneration for such work.

5.

Notice of meetings.

- Except as provided by sub-rule (i) of Rule 10, meetings of the Council or of any Committee shall be convened by its Secretary under the direction of the Chairman of the Board or of the Committee, as the case may be. The Secretary shall give to the members of the Council or the Committee, as the case may be, not less than ten days' notice, in writing, of the date, time and place of the proposed meeting. Not less than seven days before the date of the meeting, the Secretary shall send to such members copies of the agenda of the meeting.

6.

Chairman at meetings of the Council.

- The ex officio Chairman of the Council and in his absence a member of the Board deputed by him in this behalf shall preside over a meeting of the Council. In the absence of the Chairman and of the person, if any, so deputed by him, the members of the Council shall elect a Chairman of the meeting from amongst themselves.

7.

Chairman at meetings of Committees.

- In the absence of the ex officio Chairman of the Committee at any meeting, the members of the Committee present shall elect a Chairman for that meeting from amongst themselves.

8.

Travelling and Daily Allowance to the members of the Council and Committee.

- (i) A member of the Council or of a Committee shall be entitled only to travelling allowance, including daily allowance as hereinafter provided in this rule, for attending the meetings of the Council or Committees; as the case may be, and to no other remuneration.

(ii)

A member of the Council or of a Committee other than a Government servant shall be entitled to travelling allowance, including daily allowance, for the days he attends the meetings, payable at the rates and according to the rules applicable to a Government servant of the first grade. The Chairman of the Council or Committee, as the case may be, shall be controlling authority in respect of such travelling allowance bills.

(iii)

A member of the Council or of a Committee, who is a Government servant, shall be entitled to draw travelling allowance, including daily allowance, on the scale admissible to him under the Travelling Allowance Rules of the Government.

9.

Proceedings.

- The proceedings of the every meeting of the Council or a Committee shall be recorded in a minute-book to be kept for the purpose and shall be signed by the Chairman of the meeting at that very meeting or at the next succeeding meeting. No matter other than that included in the agenda, shall be considered or discussed at a meeting of the Council or of a Committee, except with the special permission of the Chairman of the meeting.

10.

Quorum and adjourned meeting.

- (i) One-third of the members will constitute a quorum at a meeting of the Council or a Committee. If there is no quorum within fifteen minutes of the appointed time for the meeting, no meeting shall be held and the Chairman of the Council (the ex officio Chairman or the member deputed by him) or of the Committee, as the case may be if present, may then and there adjourn the meeting to such future date as may be specified by him. No further notice need be given for a meeting so adjourned.

(ii)

If at any time during the progress of a meeting, after its commencement, there ceases to be quorum, the meeting, shall ignore the want of quorum and shall continue to transact its business.

(iii)

No quorum shall be necessary at an adjourned meeting.

(iv)

No matter shall be considered at a meeting adjourned under sub-rule (i) other than matters left over at the meeting from which the adjournment took place :

Provided that the Chairman of the Council or Committee, as the case may be, may bring or permit or direct new matter, which in his opinion is urgent to be brought in before the adjourned meeting, with or without notice.

11.

Point of order.

- Any point of order raised at a meeting shall be decided by the Chairman presiding at the meeting and his decision shall be final.

12.

Savings as to validity of proceedings.

- No proceeding of the Council or of a Committee shall be invalidated by reason merely of a vacancy or vacancies existing in the Council or Committee or by reason of non-receipt of the notice or a copy of the agenda, provided it was duly issued, or by reason of any irregularity in the conduct of the business of the meeting.

Explanation. - A notice shall be deemed to be duly issued if it is despatched within the prescribed time to the registered address of a member by post or by peon.

13.

Voting.

- (i) Every member shall have one vote.

(ii)

All matters placed before a meeting shall be decided by a simple majority of votes of the members present. On putting any matter to vote, the Chairman presiding at a meeting shall call for an indication of the opinion of the members by show of hands, first in the affirmative and then in the negative, and shall declare the result accordingly, which shall be recorded in the minute-book.

(iii)

The Chairman presiding at a meeting shall be entitled to vote and in case of equality of votes the Chairman shall have a second or casting vote.

14.

Officers invited to attend not entitled to vote.

- Officers of the Board not being members thereof may be invited by the Chairman of the Council or Committee, as the case may be, to attend any meeting thereof, and such officers may take part in the deliberations but shall not be entitled to vote.

15.

Disorderly conduct of a member.

- The Chairman presiding at any meeting may direct any member of the Council or of a Committee whose conduct is, in his opinion, disorderly, to withdraw. On being asked to withdraw, the member in question shall withdraw from the meeting and if he fails to do so or otherwise persists in disorderly conduct, he will be liable to removal from membership of the Council or the Committee, as the case may be, on a report being made to that effect by the Chairman to the Government.

16.

General.

- In cases not expressly provided for in these rules for the conduct of meetings the decision of the Chairman presiding at a meeting on all matters relating to the conduct of business at the meeting shall be final.

17.

Transitory provision.

- Notwithstanding anything contained in Rule 3, the members of the Council, other than members of the Board, holding office as such immediately before the date of commencement of these rules shall cease to be such members from the said date.

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